

25NNCV00322 25NNCV00322

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-24

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=PAS%2CP%2C09%2F24%2F2026

Source SHA-256: 88b3da95b93c2a7220c02059f3269ca6deea1da01f09682dd42990fc89521dad

Case Number: 25NNCV00322 Hearing Date: September 24, 2026 Dept: P

[TENTATIVE] ORDER GRANTING IN PART DEFENDANTS' UBER TECHNOLOGIES, INC., RASIER, LLC AND RASIER-CA, LLC'S MOTION TO COMPEL NEUROPSYCH IME OF PLAINTIFF PATRIA VALDEZ

I. INTRODUCTION

This action arises out of a motor vehicle collision that occurred on August 31, 2024, near the intersection of Vineland Avenue and Victory Boulevard in North Hollywood. Plaintiffs Patria Diaz and her minor son, Cedric Valdez ("Plaintiffs"), allege they suffered severe injuries when Defendant Daryoush Mehrabani, while driving for Uber, crossed into oncoming traffic and caused a head-on collision. Plaintiffs filed this action on January 16, 2025, asserting claims against Mehrabani, Uber Technologies, Inc., Rasier, LLC, and Rasier-CA, LLC.

On August 24, 2026, Defendants Uber Technologies, Inc., Rasier, LLC, and Rasier-CA, LLC. ("Defendants") filed the instant motion to compel a neuropsychological independent medical examination ("IME") of Plaintiff Patria Diaz. On September 9, 2026, Plaintiff filed an opposition. On September 17, 2026, Defendants filed a reply.

II. LEGAL STANDARD

"Any party may obtain discovery . . . by means of a physical or mental examination of (1) a party to the action, (2) an agent of any party, or (3) a natural person in the custody or under the legal control of a party, in any action in which the mental or physical condition ... of that party or other person is in controversy in the action." (Code Civ. Proc., § 2032.020, subd. (a).)

In a personal injury action, the defendant may demand one physical examination of plaintiff as of right, without advance leave of the court. (Code Civ. Proc., § 2032.220.)

If a defendant seeks a further physical examination of plaintiff, or a mental examination, the defendant must first file a motion and "obtain leave of court." (Code Civ. Proc., § 2032.310, subd. (a).) Such a motion must "specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination." (Id., subd. (b).) The court may grant such a motion "only for good cause shown." (Id., § 2032.320, subd. (a).) A showing of good cause generally requires "that the party produce specific facts justifying discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence." (Vinson v. Super. Ct. (1987) 43 Cal.3d 833, 840.)

The moving party must support the motion with a meet and confer declaration. (Code Civ. Proc., § 2032.310, subd. (b).) A meet and confer declaration must state facts "showing a reasonable and good faith attempt at an informal resolution of each

issue presented by the motion.” (Code Civ. Proc., § 2016.040.)

The examination will be limited to whatever condition is “in controversy” in the action. (Code Civ. Proc., § 2032.020, subd. (a).) “An order granting a physical or mental examination shall specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination.” (Code Civ. Proc., § 2032.320, subd. (d).) “The court is to describe in detail who will conduct the examination, where and when it will be conducted, the conditions, scope and nature of the examination, and the diagnostic tests and procedures to be employed. The way to describe these ‘diagnostic tests and procedures’—fully and in detail—is to list them by name.” (Carpenter v. Super. Ct. (2006) 141 Cal.App.4th 249, 260.).

III. ANALYSIS

As a preliminary matter, the Court notes that Plaintiff filed objections to the new evidence and arguments submitted with Defendants’ reply. Plaintiff requests that the Court strike or disregard the challenged materials, or alternatively, permit Plaintiff to file a sur-reply. The Court declines to do so.

Defendants move for an order compelling Plaintiff to submit to a neuropsychological examination with neuropsychologist Dr. Kyle Boone, Ph.D. Defendants contend the examination is warranted because Plaintiff alleges she suffers and continues to suffer from cognitive deficits and injuries as a result of the accident. (Motion, pp. 1-2.) In opposition, Plaintiff argues the motion should be denied on procedural grounds because Defendants failed to adequately meet and confer, failed to file a separate statement, and failed to specify a date for the examination. (Opposition, pp. 6-7.)

As to the procedural objections, the Court declines to deny the motion on these grounds. The parties’ respective positions and the conditions in dispute are sufficiently presented in the papers, and, in the interest of judicial economy, the Court elects to reach the merits of the motion.

As to the merits, there is no dispute that Plaintiff’s neuropsychological condition is in controversy or that good cause exists for an examination. Plaintiff alleges she suffered a traumatic brain injury resulting in continuing cognitive symptoms and expressly states in opposition that she does not oppose a neuropsychological examination by Dr. Boone. (Opposition, p.4.)

Thus, the issue before the Court is not whether the examination should occur, but the manner and conditions under which the examination will proceed. The Court addresses the disputed conditions as follows:

Tests administered

Plaintiff argues that any order must identify the specific tests Dr. Boone is permitted to administer. Defendants respond that their notice identified each test from which Dr. Boone may select. (Reply, pp. 5-6.) The Court finds that Dr. Boone may administer some or all of the tests identified in Defendants’ notice as clinically appropriate. The examination shall be limited to the identified tests.

Audio recordings and raw data

Plaintiffs argue the entire examination must be audio recorded. Plaintiffs request that the Court require Dr. Boone to make a continuous audio recording of the entire examination including testing and provide Plaintiff’s counsel an unedited copy. (Opposition, pp.8-9.) The Court finds Plaintiffs’ requests reasonable. Thus, the entire mental examination, including the testing portion, shall be audio recorded.

As to raw data, Plaintiff requests that the raw testing data be produced directly to Plaintiff's counsel subject to a protective order. (Opposition, pp. 9-11.) Defendants oppose direct disclosure to counsel and contend that the raw testing materials should be disclosed only to a licensed psychologist or neuropsychologist retained by Plaintiff due to concerns regarding test security. (Reply, p. 11.)

The Court finds that the raw testing data and audio recording may be produced directly to Plaintiff's counsel subject to an appropriate protective order. As recognized in *Randy's Trucking, Inc. v. Superior Court* (2023) 91 Cal.App.5th 818, the Court has discretion to order disclosure of neuropsychological testing materials directly to counsel while imposing appropriate safeguards to protect the confidentiality and integrity of the testing materials.

Thus, Dr. Boone shall produce the raw testing data and audio recording to Plaintiff's counsel subject to a protective order.

History

Plaintiff argues that Dr. Boone should be permitted to obtain clinically relevant history necessary to conduct the neuropsychological examination but should not be permitted to use the examination as an unrestricted or duplicative deposition. (Opposition, pp. 11-12.) The Court finds that Dr. Boone may inquire into Plaintiff's history to the extent reasonably related to Plaintiff's claimed injuries and the conditions in controversy, excluding any inquiry into attorney-client communications or litigation strategy.

Based on the foregoing, the Court GRANTS Defendants' motion in part, subject to the conditions set forth above. The parties are ordered to meet and confer regarding a mutually agreeable date for the examination.

IV. CONCLUSION AND ORDER

The Court GRANTS Defendants' motion in part subject to the conditions set forth above. The Parties are ordered to meet and confer regarding a mutually agreeable date for the examination.

Defendants are to give notice.

Dated: September 24, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT